

dew theory

S K I N — C A R E

Legal Open Items & Publication Checklist

Legal Report

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DOCUMENT DT-REPORT-003

EFFECTIVE DATE · UPON APPROVAL AND PUBLICATION

LAST UPDATED · AUGUST 15, 2026

DEWTHEORYCO.COM

ATTORNEY REVIEW DRAFT
CONTROLS PUBLICATION READINESS

Legal Open Items & Publication Checklist

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STATUS

ATTORNEY REVIEW DRAFT

PUBLICATION / USE

CONTROLS PUBLICATION READINESS

Use. Every intentional bracketed marker in the legal package maps to one or more items below. A P0 “block” means the affected flow should remain nontransactional or should not collect the affected sensitive information until resolved. It does not mean the entire informational website must be taken offline.

P0 — publication/transaction blockers

OI-001 — Legal entity / website operator / merchant of record

- **Category:** Business identity
- **Current evidence:** Public site uses the trade name Dew Theory; no verified legal entity/operator was established in the audit.
- **Unknown / decision required:** Legal entity name, DBA status, state of organization, principal/mailling address, and merchant of record for e-commerce/services.
- **Documents affected:** Privacy, Terms, Returns, Booking, Membership, all notices.
- **Flow affected:** Checkout, booking, privacy requests, legal notices.
- **Severity:** P0
- **Publication blocked:** Yes for operative Privacy/Terms and live transactions.
- **Recommended owner:** Founder/business operations + counsel.
- **Counsel review:** Yes.

OI-002 — Public support, privacy and accessibility contacts

- **Category:** Consumer support / privacy
- **Current evidence:** Contact page exists; dedicated legal/privacy contact not verified.
- **Unknown / decision required:** Monitored support email, privacy request email/form, mailing address, phone if offered, accessibility contact.
- **Documents affected:** Privacy, Returns, Shipping, Booking, Cookies, Accessibility, CHD.

- **Flow affected:** Customer service and statutory requests.
- **Severity:** P0
- **Publication blocked:** Yes for production privacy/returns systems.
- **Recommended owner:** Operations.
- **Counsel review:** No for address selection; yes for statutory request channel design.

OI-003 — Emily credential verification

- **Category:** Professional licensing
- **Current evidence:** Site names Emily Mitchener and claims licensed aesthetician; exact board/license number is stated as pending launch confirmation.
- **Unknown / decision required:** Exact legal/professional name, credential type, jurisdiction, license/registration number and active status.
- **Documents affected:** Disclaimer, Booking, Treatment Consent, Minor Consent, About/Studio copy.
- **Flow affected:** All aesthetic services.
- **Severity:** P0
- **Publication blocked:** Paid aesthetic services.
- **Recommended owner:** Practitioner + counsel/compliance.
- **Counsel review:** Yes.

OI-004 — Facility license and lawful scope by treatment

- **Category:** Aesthetic-services law
- **Current evidence:** Public draft menu lists facials, chemical peel, dermaplaning, extractions-related treatment concepts; operating state/facility license not verified.
- **Unknown / decision required:** State, establishment/salon license, permitted service types, peel product/strength/depth, dermaplaning authority, extraction/device/modalities rules.
- **Documents affected:** Booking, Disclaimer, Minor Consent, Treatment Consent, Claims Audit.
- **Flow affected:** Service pages, booking, treatment.
- **Severity:** P0
- **Publication blocked:** Paid treatments.
- **Recommended owner:** Practitioner + licensing counsel.
- **Counsel review:** Yes; board confirmation where appropriate.

OI-005 — Production payment processing

- **Category:** Payments
- **Current evidence:** Public site describes Stripe when configured and development mock behavior.
- **Unknown / decision required:** Production processor/account, merchant descriptor, merchant of record, webhook/refund configuration, card-on-file use.
- **Documents affected:** Privacy, Terms, Booking, Membership.
- **Flow affected:** Checkout, deposits, consult, membership.
- **Severity:** P0
- **Publication blocked:** Any charge-capable flow.
- **Recommended owner:** Engineering + finance/operations.

- **Counsel review:** Limited; review recurring/card-on-file disclosures.

OI-006 — Fulfillment origin, carrier and shipment timing

- **Category:** Shipping / FTC merchandise rule
- **Current evidence:** \$7 below \$49 and free at \$49+ pre-discount stated; supplier PO/drop-ship possible; carrier, ship-from and timing not finalized.
- **Unknown / decision required:** Territory, fulfillment party by SKU, processing/shipping basis, carriers, PO boxes, tracking, partial shipment, delay workflow.
- **Documents affected:** Shipping, Terms.
- **Flow affected:** Checkout and fulfillment.
- **Severity:** P0 operational / P1 document.
- **Publication blocked:** Live orders until reasonable shipment-time basis exists.
- **Recommended owner:** Operations + engineering.
- **Counsel review:** Yes for FTC Rule workflow.

OI-007 — Return/refund/exchange rules

- **Category:** Commerce
- **Current evidence:** FAQ states return window/nonreturnable list are not set.
- **Unknown / decision required:** Window, unopened/opened rule, final sale, adverse reactions, RMA, return shipping, refund timing, exchanges, return address.
- **Documents affected:** Returns, Terms, checkout copy.
- **Flow affected:** Commerce/customer support.
- **Severity:** P0
- **Publication blocked:** Live product sales.
- **Recommended owner:** Operations + finance.
- **Counsel review:** Yes.

OI-008 — Deposit, cancellation, no-show and lateness rules

- **Category:** Booking economics
- **Current evidence:** Services page says deposit/cancellation terms are not set.
- **Unknown / decision required:** Deposit, cancellation window, late-cancel/no-show charge, lateness/grace period, exceptions, refund/transfer rules.
- **Documents affected:** Booking, Terms, Virtual Terms.
- **Flow affected:** Paid booking and virtual consult.
- **Severity:** P0
- **Publication blocked:** Paid booking.
- **Recommended owner:** Operations/practitioner.
- **Counsel review:** Yes.

OI-009 — Virtual consultation commercial/geographic/technical configuration

- **Category:** Virtual services

- **Current evidence:** About 45 min via Zoom; intake/photos; plan target 24–48h; Stripe when configured; price/geography not verified.
- **Unknown / decision required:** Price, eligible jurisdictions, provider/account, recording setting, booking/payment/refund, target-SLA approval.
- **Documents affected:** Virtual Terms, Booking, Privacy, Health Data.
- **Flow affected:** Virtual consult.
- **Severity:** P0
- **Publication blocked:** Paid virtual consult/intake.
- **Recommended owner:** Operations + practitioner + engineering.
- **Counsel review:** Yes for geography/scope/privacy.

OI-010 — Privacy vendor inventory, retention and rights workflow

- **Category:** Privacy operations
- **Current evidence:** Current privacy page identifies some contemplated systems but calls several unconfigured; retention and formal rights process pending.
- **Unknown / decision required:** Production vendor/subprocessor inventory, data maps, retention schedule, request/verification/appeal workflow, incident/breach procedure.
- **Documents affected:** Privacy, Cookies, Photo Authorization, Health Data.
- **Flow affected:** Site-wide data collection.
- **Severity:** P0
- **Publication blocked:** Sensitive intake and full production policy.
- **Recommended owner:** Engineering/security + counsel/privacy owner.
- **Counsel review:** Yes.

OI-011 — Consumer health data trigger and consent/deletion workflow

- **Category:** Consumer health data
- **Current evidence:** Intended intake can include skin condition, medications, hormones/lifestyle and facial photos.
- **Unknown / decision required:** Consumer states served; whether Washington/Nevada/other covered residents can submit; collection/sharing purposes; processors; deletion propagation; separate consent/appeal.
- **Documents affected:** Health Data, Privacy, Virtual Terms, Photo Authorization.
- **Flow affected:** Intake/photos/consultation.
- **Severity:** P0
- **Publication blocked:** Covered health-data collection until configured.
- **Recommended owner:** Privacy counsel + engineering.
- **Counsel review:** Yes.

OI-012 — Minors and guardian workflow

- **Category:** Minors / COPPA / service consent
- **Current evidence:** Site markets to teens; no verified age gate or procedure age rules.

- **Unknown / decision required:** Minimum ages by feature/service, under-13 website handling, guardian authority/presence, minor photo policy.
- **Documents affected:** Minor Consent, Privacy, Booking, Treatment Consent.
- **Flow affected:** Quiz/intake/booking/services/photos.
- **Severity:** P0
- **Publication blocked:** Minor sensitive-data/service flow.
- **Recommended owner:** Counsel + practitioner + product/engineering.
- **Counsel review:** Yes.

OI-013 — Governing law, venue and dispute process

- **Category:** Contract
- **Current evidence:** Operator/state not verified; no basis to select forum.
- **Unknown / decision required:** Governing law, venue, small-claims/ informal dispute process, whether arbitration/class waiver is desired after counsel analysis.
- **Documents affected:** Terms, Membership.
- **Flow affected:** Contract enforcement.
- **Severity:** P0 for final Terms publication.
- **Publication blocked:** Final operative Terms language.
- **Recommended owner:** Counsel.
- **Counsel review:** Yes.

OI-014 — Product/service advertising substantiation file

- **Category:** FTC/FDA advertising
- **Current evidence:** Multiple disease/mechanistic and "clinical/professional" claims appear; substantiation dossier not verified.
- **Unknown / decision required:** Manufacturer-authorized copy, studies/evidence, claim approval owner and workflow.
- **Documents affected:** Claims Audit; product pages; Disclaimer.
- **Flow affected:** Marketing/shop.
- **Severity:** P0 for flagged claims.
- **Publication blocked:** Specific P0 claim copy.
- **Recommended owner:** Product/marketing + counsel/compliance.
- **Counsel review:** Yes for P0/P1 claims.

OI-015 — Sunscreen regulatory/label verification

- **Category:** FDA OTC drug
- **Current evidence:** Sheer Protection SPF30 offered; current Drug Facts/physical label not independently verified.
- **Unknown / decision required:** Exact SKU, current label, directions/warnings, expiration/lot handling, authorized reseller/provenance.
- **Documents affected:** Product page, Terms/Disclaimer as relevant.
- **Flow affected:** Sunscreen sale.

- **Severity:** P0/P1
 - **Publication blocked:** Sale if label/provenance cannot be verified.
 - **Recommended owner:** Operations/product + counsel/compliance.
 - **Counsel review:** Yes if claims differ from manufacturer label.
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P1 — significant pre-launch/business controls

OI-016 — Final service menu and prices

- **Category:** Commercial
- **Current evidence:** Draft menu displays 6 services with prices/durations and labels itself working draft.
- **Unknown / decision required:** Approved names, durations, prices, add-ons, consultation credit and tax treatment.
- **Documents affected:** Booking, service pages.
- **Flow affected:** Services.
- **Severity:** P1; P0 if taking bookings.
- **Publication blocked:** Transactional service offer.
- **Recommended owner:** Business/practitioner.
- **Counsel review:** Limited.

OI-017 — DEW15 promotion

- **Category:** Promotions
- **Current evidence:** FAQ calls seeded percentage placeholder.
- **Unknown / decision required:** Disable or approve percentage, eligibility, exclusions, stackability, start/end, usage limits.
- **Documents affected:** Terms, marketing copy.
- **Flow affected:** Cart/checkout.
- **Severity:** P1; P0 if code works in production.
- **Publication blocked:** Active promotion.
- **Recommended owner:** Marketing/finance.
- **Counsel review:** No/limited.

OI-018 — Marketing email program

- **Category:** CAN-SPAM / marketing privacy
 - **Current evidence:** Resend referenced for transactional email when configured; marketing provider/source not verified.
 - **Unknown / decision required:** Provider, sending address/domain, physical postal address, signup consent, suppression/unsubscribe process.
 - **Documents affected:** Privacy.
 - **Flow affected:** Email signup/promotions.
 - **Severity:** P1
 - **Publication blocked:** Promotional sends until configured.
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- **Recommended owner:** Marketing/operations.
- **Counsel review:** Yes for program setup.

OI-019 — Analytics, pixels and targeted advertising

- **Category:** Tracking/privacy
- **Current evidence:** No third-party analytics/ad networks publicly identified; first-party events may be recorded.
- **Unknown / decision required:** Production scripts/SDKs/server-side events; any future Meta/Google/TikTok/etc.; consent/GPC classification.
- **Documents affected:** Privacy, Cookies, Health Data.
- **Flow affected:** Site-wide, especially sensitive routes.
- **Severity:** P1
- **Publication blocked:** New nonessential tracking until review.
- **Recommended owner:** Engineering/marketing/privacy.
- **Counsel review:** Yes when targeted advertising added.

OI-020 — Photo retention and marketing governance

- **Category:** Media/privacy/endorsements
- **Current evidence:** Private consultation photos contemplated; future before/after/testimonial use possible.
- **Unknown / decision required:** Retention, deletion, approved storage, marketing release process, editing standard, withdrawal procedure.
- **Documents affected:** Photo Authorization, Privacy, Health Data.
- **Flow affected:** Consultation/treatment/marketing.
- **Severity:** P1
- **Publication blocked:** Marketing photo use until separate authorization system exists.
- **Recommended owner:** Privacy/marketing/practitioner.
- **Counsel review:** Yes.

OI-021 — Sales tax and service tax treatment

- **Category:** Tax/checkout
- **Current evidence:** Final nexus/merchant entity/locations unknown.
- **Unknown / decision required:** Tax registrations, product/service taxability, membership bundle treatment, checkout engine.
- **Documents affected:** Terms, Membership.
- **Flow affected:** Checkout/booking.
- **Severity:** P1
- **Publication blocked:** Transactions if tax cannot be calculated lawfully.
- **Recommended owner:** Tax adviser/finance.
- **Counsel review:** Tax professional.

OI-022 — Paid membership business terms

- **Category:** Automatic renewal

- **Current evidence:** Interest/future membership concept; no verified operational paid program.
- **Unknown / decision required:** Price, cadence, benefits, term, rollover, pause, cancellation, refund, reminders, territories.
- **Documents affected:** Membership Terms, Terms, Privacy.
- **Flow affected:** Membership.
- **Severity:** P1/P0 at launch.
- **Publication blocked:** Paid membership.
- **Recommended owner:** Business + counsel + engineering.
- **Counsel review:** Yes.

OI-023 — Accessibility baseline and support

- **Category:** Digital accessibility
- **Current evidence:** No support channel/verified conformance level established.
- **Unknown / decision required:** Accessibility owner/contact, test baseline, remediation cadence, third-party accommodation process.
- **Documents affected:** Accessibility Statement.
- **Flow affected:** Site-wide.
- **Severity:** P1
- **Publication blocked:** No, but remediate material barriers before broad launch.
- **Recommended owner:** Engineering/design/operations.
- **Counsel review:** Limited.

OI-024 — Skin Script reseller relationship/provenance

- **Category:** Supplier/trademark/claims
- **Current evidence:** Skin Script branded products and wholesale pricing logic displayed.
- **Unknown / decision required:** Authorized account terms, approved images/copy, MSRP/sticker data, warranty/returns responsibilities, drop-ship authorization.
- **Documents affected:** Terms, Shipping, Returns, Claims Audit.
- **Flow affected:** Shop/fulfillment.
- **Severity:** P1
- **Publication blocked:** Product claims/sourcing if provenance uncertain.
- **Recommended owner:** Operations/product.
- **Counsel review:** Contract/trademark review as needed.

P2 — secondary business decision

OI-025 — Gift cards / store credit

- **Category:** Commerce
- **Current evidence:** Gift-card availability not verified.
- **Unknown / decision required:** Whether offered; expiration/fees/refunds; unclaimed-property implications.

- **Documents affected:** Returns, Terms.
- **Flow affected:** Commerce.
- **Severity:** P2 until feature exists.
- **Publication blocked:** Gift-card feature only.
- **Recommended owner:** Finance/operations + counsel.
- **Counsel review:** Yes if launched.

Publication checklist

Before any affected flow is promoted to production, confirm:

- ☐ OI-001 through OI-002 resolved for operative legal identity/contact.
- ☐ OI-003 through OI-004 resolved before any paid treatment.
- ☐ OI-005 through OI-008 resolved before payment/fulfillment/booking.
- ☐ OI-009 through OI-012 resolved before virtual sensitive intake or minor services.
- ☐ OI-013 resolved before final contract publication.
- ☐ OI-014 and OI-015 resolved for flagged product claims/sunscreen.
- ☐ P1 items affecting the exact launched feature are closed or have an approved documented risk treatment.
- ☐ No unresolved bracketed marker remains in a consumer-facing policy used by the launched flow.
- ☐ Counsel-approved versions have semantic version, effective date and SHA-256.
- ☐ Website assent points to the exact published version/hash.